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[TENTATIVE] ORDER DENYING DEFENDANT'S HAWAII SUPER MARKET INC'S MOTION TO CONTINUE TRIAL

I. INTRODUCTION

This is a consolidated action arising out of a June 14, 2021, fire at a mobile home park. Plaintiffs allege Defendants negligently owned, maintained, and managed the property and its electrical system, resulting in the destruction of Plaintiffs' homes and personal property. The action involves multiple consolidated cases, twenty-three Plaintiffs, and several corporate Defendants.

On July 7, 2026, Defendants Hawaii Property, Inc. and Hawaii Super Market, Inc. dba Hawaii Supermarket and Hawaii Market, Inc. filed an ex parte application to continue the trial date. The Court denied the application. On July 8, 2026, Defendant Hawaii Super Market, Inc. filed the instant amended notice of unopposed motion to continue the trial date. On July 9, 2026, Plaintiffs filed a joinder in support of the motion, and Defendant Big Big Island Property, LLC also filed a joinder.

II. LEGAL STANDARD

California Rules of Court, rule 3.1332, subdivision (c) states that although disfavored, the trial date may be continued for "good cause," which includes (without limitation): (1) unavailability of trial counsel or witnesses due to "death, illness, or other excusable circumstances"; (2) the addition of a new party depriving the new party (or other parties) from conducting discovery and preparing for trial; (3) "excused inability to obtain essential testimony, documents, or other material evidence despite diligent efforts"; or (4) "[a] significant, unanticipated change in the status of the case" preventing it from being ready for trial. (Id., Rule 3.1332(c).)

Other relevant considerations may include: "(1) The proximity of the trial date; [¶] (2) Whether there was any previous continuance, extension of time, or delay of trial due to any party; [¶] (3) The length of the continuance requested; [¶] (4) The availability of alternative means to address the problem that gave rise to the motion or application for a continuance; [¶] (5) The prejudice that parties or witnesses will suffer as a result of the continuance; [¶] (6) If the case is entitled to a preferential trial setting, the reasons for that status and whether the need for a continuance outweighs the need to avoid delay; [¶] (7) The court's calendar and the impact of granting a continuance on other pending trials; [¶] (8) Whether trial counsel is engaged in another trial; [¶] (9) Whether all parties have stipulated to a continuance; [¶] (10) Whether the interests of justice are best served by a continuance, by the trial of the matter, or by imposing conditions on the continuance; and [¶] (11) Any other fact or circumstance relevant to the fair determination of the motion or application." (Id., Rule 3.1332(d).)

Code of Civil Procedure section 2024.050 allows a court to grant leave to complete discovery proceedings. In doing so, a court shall consider matters relevant to the leave requested, including, but not limited to: (1) the necessity of the discovery,

(2) the diligence in seeking the discovery or discovery motion, (3) the likelihood of interference with the trial calendar or prejudice to a party, and (4) the length of time that has elapsed between previous trial dates. (Code Civ. Proc. § 2024.050.)

III. ANALYSIS

California Rules of Court, rule 3.1332 provides that trial dates are firm and continuances are disfavored. A party seeking a continuance bears the burden of establishing good cause.

Defendant contends good cause exists because: (1) it recently served written discovery and requires additional time to evaluate Plaintiffs' responses and conduct follow-up discovery; (2) it has been deprived of the opportunity to file a motion for summary judgment because the statutory deadline expired before it appeared in the action; (3) twenty Plaintiffs remain to be deposed; (4) independent mental examinations and expert discovery remain outstanding; (5) continued mediation is scheduled after the current trial date; and (6) counsel have diligently prosecuted and defended this complex, multi-party action. (Motion, pp. 2-6.)

The Court acknowledges that Hawaii Super Market, Inc., as a recently added defendant, has identified legitimate concerns regarding its ability to complete discovery and adequately prepare its defense before the current trial date. However, those concerns do not establish good cause to continue the trial of the consolidated actions as a whole.

This action has been pending since June 2023, and the trial has already been continued three times. The Court previously denied Defendants' ex parte application seeking substantially the same relief, noting that the prior continuances had already afforded the parties approximately eighteen additional months to prepare for trial. The Court likewise found that the inability to complete depositions and schedule mediation did not warrant a continuance. Those considerations remain applicable here.

Moreover, although Defendant points to outstanding discovery, expert discovery, and mediation efforts, the moving papers do not demonstrate that those circumstances justify a fourth continuance of these consolidated actions. Rather, the continuance primarily seeks additional time for Hawaii Super Market, Inc., which did not appear in the action until June 2026. The Court notes that Plaintiff added Hawaii Super Market, Inc. to this case by Doe amendment on April 28, 2026, after the case had been pending for almost three years. To continue the entire consolidated action with the large number of parties involved based on the addition of a single Defendant strikes this Court as the tail wagging the dog. Under these circumstances, the Court declines to delay the trial of the remaining consolidated actions, which have been pending for more than three years.

The Court instead intends to sever Hawaii Super Market, Inc. from the consolidated actions so that the recently added Defendant may have a meaningful opportunity to conduct discovery and prepare its defense without further delaying the trial of the remaining parties. At the hearing on this matter, the Court will set a briefing schedule on the issue of severance.

Based on the foregoing, the motion to continue trial is DENIED.

IV. CONCLUSION

The Court DENIES the motion to continue trial.

Defendant Hawaii Supermarkets is to give notice.

Dated: July 31, 2026

JARED D. MOSES
JUDGE OF THE SUPERIOR COURT